

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
LATOYA O'CARROLL, KEITH TRUXLER BEY,
LAURA TRUXLER BEY and K.T.B., an infant, by her
mother and natural guardian, LATOYA O'CARROLL,

Plaintiffs,

-against-

CITY OF NEW YORK, individually and in their
capacities as New York City Police Officers, Eric Healy,
and JOHN or JANE DOES 1-10,

Defendants.
-----X

Index No.:

Plaintiffs designate Bronx County as
the place of trial

The basis of the venue is where the
tort arose and where Plaintiffs reside

SUMMONS

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
September 24, 2019



SIM & DEPAOLA, LLP

By: Samuel C. DePaola, Esq.

Attorneys for Plaintiff(s)

42-40 Bell Boulevard, Suite 201

Bayside, New York 11361

(718) 281-0400

TO:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

**SERGEANT ERIC HEALY OF HIGHWAY PATROL UNIT 2,
Shield No. 4017, Tax ID No. 936743**

2900 Flatbush Ave,
Brooklyn, New York, 11234

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Index No.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, individually and in their
capacities as New York City Police Officers, Eric Healy,
and JOHN or JANE DOES 1-10,

Defendants.
-----X

Plaintiffs, LATOYA O'CARROLL, KEITH TRUXLER BEY, LAURA TRUXLER BEY
and K.T.B., an infant, by her mother and natural guardian, LATOYA O'CARROLL, by their
attorneys, Sim & DePaola, LLP, for their complaint against the above Defendants, alleges as
follows:

1. The following claims arise from a September 4, 2018 incident, in which defendants,
acting under color of state law, unlawfully entered and searched Plaintiffs' home without
a judicially authorized search warrant or probable cause and illegally detained Plaintiffs
inside of 817 E. 166th Street, County of Bronx, City and State of New York. As a result,
Plaintiffs were deprived of their liberty and suffered physical and psychological injuries.
Plaintiffs were each wrongfully detained for approximately one (1) hour.
2. Plaintiffs seek monetary damages (compensatory and punitive) against Defendants, as
well as an award of costs and attorneys' fees, and such other and further relief as the
Court deems just and proper.

PARTIES

3. Plaintiff, LATOYA O'CARROLL ("Ms. O'Carroll"), resides at 817 E. 166th Street, County of Bronx, State of New York.
4. Plaintiff, KEITH TRUXLER BEY ("Mr. Bey"), resides at 617 Meade Street, County of Bronx, State of New York.
5. Plaintiff, LAURA TRUXLER BEY ("Ms. Bey"), resides at 817 E. 166th Street, County of Bronx, State of New York.
6. Plaintiff, K.T.B. ("Ms. B"), an infant, by her mother and natural guardian, LATOYA O'CARROLL, resides at 817 E. 166th Street, County of Bronx, State of New York.
7. Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.
8. At all times relevant hereto, Defendant City, acting through the New York City Police Department ("NYPD") was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
9. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
10. Defendant, Eric Healy ("Healy"), was, at all times here relevant, a police officer or sergeant employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Healy was, at the times

- relevant herein, a police officer or sergeant, under Shield No. 4017, Tax Reg. No. 936743, in the Highway Patrol Unit 2, located at 2900 Flatbush Ave, Brooklyn, New York, 11234. Defendant Healy is being sued in his individual and official capacities.
11. At all times relevant herein, Defendants John or Jane Doe 1 through 10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiffs do not know the true names and/or tax registry numbers of Defendants John or Jane Doe 1 through 10, as such knowledge is within the exclusive possession of defendants.
12. At all times relevant herein, Defendants John or Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John or Jane Doe 1 through 10 are being sued in their individual and official capacities.
13. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
14. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

15. On or about September 4, 2018 at approximately 5:00 a.m., Plaintiffs Mr. Bey, Ms. O'Carroll, Ms. Bey and Ms. B were inside of 817 E. 166th Street, County of Bronx, State of New York.
16. On said date, time and location, Mr. Bey and Ms. O'Carroll were sleeping in one bedroom and Ms. Bey and Ms. B were sleeping in another bedroom.

17. On said date, time and location, Mr. Bey and Ms. O'Carroll were awoken by Defendants, including Healy, who violently knocked the door of Ms. O'Carroll's home without a legal reason to do so.
18. On said date, time and location, Defendants, including Healy, falsely alleged they had a warrant when they knew said allegation was untrue and a complete fabrication.
19. Then Defendants, including Healy, showed Mr. Bey and Ms. O'Carroll a picture with an individual with the individual's name.
20. Mr. Bey and Ms. O'Carroll immediately denied knowledge of said individual and explained that said individual did not live in their home.
21. However, Defendants, including Healy, forcibly entered Ms. O'Carroll's home by sticking one foot in the door without a legal reason to do so.
22. Then Defendants, including Healy, illegally started to search Ms. O'Carroll's home without probable cause or any justification to do so.
23. Then Ms. B and Ms. Bey were awoken and shocked by Defendants, including Healy.
24. Then Ms. B started to cry and Ms. O'Carroll ran to console Ms. B.
25. Then, Defendant Healy, violently pushed Ms. O'Carroll against the wall and stopped her from consoling Ms. B without any justification for doing so.
26. Then Defendants, including Healy, illegally kept pushing Mr. Bey back when Mr. Bey was trying to console Ms. B and Ms. Bey.
27. Then Defendants, including Healy, illegally confined Ms. Bey to her bedroom without any justification for doing so.

28. Then Defendants, including Healy, illegally searched Ms. Bey and Ms. B's bedroom and Mr. Bey and Ms. O'Carroll's bedroom and the living room without probable cause or any justification to do so. However, no contraband was recovered.
29. Defendants, including Healy, never showed the alleged warrant to Mr. Bey and Ms. O'Carroll and approximately one (1) hour later they left Ms. O'Carroll's home.
30. Mr. Bey, Ms. O'Carroll, Ms. Bey and Ms. B had not committed any crimes or violations of the law which would allow the defendants to enter and search their home.
31. Defendants, including Healy, committed multiple assault and batteries to Mr. Bey and Ms. O'Carroll, including but not limited to, being violently pushed against the wall several times.
32. Defendants, including Healy, never possessed a valid search warrant authorizing the search of Ms. O'Carroll's home.
33. At no point did the Defendants, including Healy, ever observe Mr. Bey, Ms. O'Carroll, Ms. Bey and Ms. B commit any crime or offense.
34. At no point were the defendants, including Healy, ever told by any witnesses that Mr. Bey, Ms. O'Carroll, Ms. Bey and Ms. B committed any crime or violation of the law.
35. The defendants, including Healy, had no probable cause or reasonable suspicion to detain or stop Mr. Bey, Ms. O'Carroll, Ms. Bey and Ms. B and search their home.
36. Defendants, including Healy, intentionally, knowingly and falsely alleging they had a warrant to conceal their otherwise illegal, tortious and sinister acts, namely entering a residence illegally without a search warrant, searching and detaining individuals without probable cause, due to no contraband being observed or reasonably suspected of being discovered.

37. Defendants, including Healy, suppressed evidence and engaged in conduct undertaken in bad faith.
38. Defendants have displayed a pattern and practice of falsely alleging the existence of a judicially authorized warrant to enter and search residences or property.
39. At all times relevant hereto, Defendants, including Healy, were involved in the decision to enter Ms. O'Carroll's home and detain Plaintiffs without probable cause or failed to intervene when they observed others entering Plaintiffs' residence without a warrant and detaining Plaintiffs without probable cause.
40. At all times relevant hereto, Defendants, including Healy, engaged in fraud, perjury, gross deviation from proper police procedures or other actions conducted in bad faith, or failed to intervene when defendants observed others doing so.
41. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the NYPD that resulted in the search and detention of plaintiffs without a valid warrant, probable cause or justification
42. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have failed to provide adequate training in the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.
43. The instant searches and detainments of plaintiffs, without even the semblance of probable cause, justification or excuse, was so egregious as to amount to a deliberate indifference by the policy and decision makers within the NYPD and City of New York,

because the need for enhanced training and supervision is obvious due to the clear lack of any probable cause to search or detain plaintiffs.

44. Upon information and belief, further details and factual allegations will become available after discovery is completed, as the current policies and customs of the NYPD and City of New York are within the exclusive knowledge and possession of defendants.
45. Upon information and belief, Defendant City knew, or should have known about the individual defendants' severe character deficiencies and clear unsuitability for employment as police officers, or for employment in general, because of information within the officers' personnel files, psychological evaluations, job performance assessments, civilian complaints, filed lawsuits or notices of claims, internal investigations, internal complaints, or the personal observations of supervisors.
46. Upon information and belief, the personnel files and records of the individual officers involved in Plaintiff's arrest will reveal a history of Constitutional violations or a severe ignorance of the very laws the defendant officers are employed to enforce that will indicate that Defendant City knew, or should have known that the individual officers were unfit for employment as NYPD officers and/or supervisors and would be likely to commit Constitutional violations similar to the violations that were committed against plaintiffs.
47. As a direct and proximate result of the acts of Defendants, including Healy, Plaintiffs suffered the following injuries and damages: violations of their rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and

suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION
Unlawful Search and Seizure Under
New York State Law

48. The above paragraphs are here incorporated by reference as though fully set forth.
49. Defendants did not possess a judicially authorized or otherwise valid search warrant to enter the premises, conduct a search or detain plaintiffs.
50. Defendants did not possess probable cause or any other justification to enter the premises, conduct a search or detain plaintiffs.
51. Defendants unlawfully entered, searched and detained plaintiffs in the absence of a judicially authorized search or arrest warrant and without probable cause or other justification to do so.
52. Defendants, therefore, subjected plaintiffs to unreasonable searches and seizures in violation of the New York State Constitution, Article I, Section 12.
53. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
54. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.
55. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION
Unlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

56. Defendants did not possess a judicially authorized or otherwise valid search warrant to enter the premises, conduct a search or detain plaintiffs.
57. Defendants did not possess probable cause or any other justification to enter the premises, conduct a search or detain plaintiffs.
58. Defendants unlawfully entered, searched and detained plaintiffs in the absence of a judicially authorized search or arrest warrant and without probable cause or other justification to do so.
59. Defendants, therefore, subjected plaintiffs to unreasonable searches and seizures in violation of the Fourth Amendment to United States Constitution.
60. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.
61. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

62. The above paragraphs are here incorporated by reference as though fully set forth.
63. Defendants subjected Plaintiffs to false arrest, false imprisonment, and deprivation of liberty without probable cause.
64. Plaintiffs were conscious of their confinement.
65. Plaintiffs did not consent to their confinement.
66. Plaintiffs' arrest and false imprisonment was not otherwise privileged.
67. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

68. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
69. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

70. The above paragraphs are here incorporated by reference as though fully set forth.
71. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.
72. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiffs was carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.
73. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiffs.
74. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
75. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

76. The above paragraphs are here incorporated by reference as though fully set forth.
77. Defendants made plaintiffs fear for their physical well-being and safety and placed them in apprehension of immediate harmful and/or offensive touching.

78. Defendants engaged in and subjected plaintiffs to immediate harmful and/or offensive touching and battered them without their consent.
79. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
80. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.
81. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

82. The above paragraphs are here incorporated by reference as though fully set forth.
83. The Defendants violated Plaintiffs' rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiffs' consent.
84. Defendants engaged in and subjected Plaintiffs to immediate harmful and/or offensive touching and battered them without their consent.
85. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.
86. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

87. The above paragraphs are here incorporated by reference as though fully set forth.

88. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
89. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
90. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
91. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

92. The above paragraphs are here incorporated by reference as though fully set forth.
93. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
94. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
95. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
96. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION

Negligent Hiring, Retention and Supervision Under
New York State Law

97. The above paragraphs are here incorporated by reference as though fully set forth.
98. Defendant City owed a duty of care to Plaintiffs to adequately hire, retain and supervise its employee defendants.
99. Defendant City breached that duty of care.
100. Defendant City placed defendants in a position where they could inflict foreseeable harm.
101. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiffs.
102. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiffs.
103. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
104. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

105. The above paragraphs are here incorporated by reference as though fully set forth.
106. Defendant City maintained a policy, custom or practice that caused Plaintiffs to be deprived of their Constitutional right to free from illegal searches and seizures.
107. Defendant City's illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.

108. Defendant City and its policymakers failed to provide adequate training or supervision to subordinates to such an extent that it is tantamount to their deliberate indifference towards the rights of those who come into contact with Defendant City's employees.
109. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiffs' Constitutional rights that the need for enhanced supervision and training is obvious and therefore tantamount to a display of deliberate indifference by Defendant City and its policymakers towards the rights of individuals who come into contact with defendant City's employees.
110. Defendant City's conduct violated Plaintiffs' rights under the Fourth and Fourteenth Amendments to the United States Constitution.
111. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
112. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiffs respectfully request judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) Awarding Plaintiffs punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- l) Awarding Plaintiffs reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;

Together with the costs and disbursements of this action

Dated: Bayside, New York
September 24, 2019



SIM & DEPAOLA, LLP
By: Samuel C. DePaola, Esq.
Attorneys for Plaintiff(s)
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Bayside, NY 11361
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ATTORNEY VERIFICATION

I, Samuel C. DePaola, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by myself and not by Plaintiff, is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
September 24, 2019



SAMUEL C. DEPAOLA, ESQ.

Index No.

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SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
By: Samuel C. DePaola, Esq.
Attorneys for Plaintiff(s)
42-40 Bell Boulevard
Suite 201
Bayside, New York 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.
Dated

Attorney(s) for